

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CLCL060096: WELLS FARGO BANK, N.A. vs ZOYA Y JOHNSON, AN
INDIVIDUAL**

**09/24/2026 in Department 20
Motion for Summary Judgment**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff Wells Fargo Bank, N.A.'s ("Plaintiff") Motion for Summary Judgment

Tentative: Plaintiff's unopposed Motion for Summary Judgment is GRANTED. The Court finds that there is no triable issue as to any material fact and that Plaintiff is entitled to judgment as a matter of law.

Plaintiff shall give notice.

Background

On January 23, 2026, Plaintiff filed this complaint against Defendant asserting causes of action for (1) breach of contract and (2) breach of implied-in-fact contract. Plaintiff alleges that pursuant to the parties' agreement, it extended a line of credit and issued a credit card to Defendant and Defendant incurred charges, paid charges, ceased paying his charges, and now owes Plaintiff a balance of \$16,018.33.

On June 11, 2026, Plaintiff filed its motion for summary judgment accompanied by a separate statement of undisputed material facts, a declaration from a representative of Plaintiff and evidence in the form of the Consumer Credit Card Customer Agreement & Disclosure Statement and

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monthly statements for Defendant's use of the credit card from April 12, 2013 through June 30, 2025.

Legal Standards on Summary Judgment

The legal standards on summary judgment are well established and they are not repeated here.

Material Facts

The motion is unopposed. For the limited purpose of ruling on this motion, the Court makes the following findings: Plaintiff's Undisputed Material Facts ("UMF") Nos. 1 through 14 (Breach of Contract) and 15 through 28 (Breach of Implied Contract) are undisputed and established.

Ruling on the Motion

A. Breach of Contract/Breach of Implied-in Fact Contract

To recover damages for breach of contract plaintiff must prove: (1) the existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, (4) plaintiff's damage, and (5) that defendant's breach was a substantial factor in causing plaintiff's damage (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388.) A contract may be implied (Civ. Code. § 1621.) Like an express contract, an implied-in-fact contract requires an ascertained agreement of the parties but is based on the conduct of the parties. (*Unilab Corp. v. Angeles IPA* (2016) 244 Cal.App.4th 622, 636.)

It is undisputed that Defendant applied for and was issued a line of credit and a Wells Fargo credit card ("Credit Card") which, along with the Consumer Credit Card Customer Agreement & Disclosure Statement, was sent to Defendant. (UMF ¶¶ 1, 15.) Plaintiff and Defendant agreed that Plaintiff would extend credit to Defendant in exchange for Defendant repaying the principal, plus interest and applicable fees. (UMF ¶¶ 1-5, 15-19.) Defendant accepted the Agreement by making charges, payments and incurring a balance on the Credit Card. (UMF ¶¶ 4, 6, 18, 20.) Plaintiff kept an account of all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period and sent Defendant itemized monthly statements of all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period. (UMF ¶¶ 7-8, 21-22.) Defendant made payments on the account but made no payments after October 30, 2024, and is default with a balance owed to Plaintiff of \$16,018.33. (UMF ¶¶ 11-14, 25-28.) Plaintiff performed all of its obligations under the agreement. (UMF ¶¶ 1-8, 15-22.) Defendant breached the agreement by failing to pay the charges as agreed, leaving an unpaid balance of \$16,018.33. (UMF ¶¶ 1-14, 15-27.) As a result of the unpaid balance, Plaintiff has been damaged in the amount of \$16,018.33. (UMF ¶¶ 14, 28.)

Plaintiff has carried its burden of persuasion and production that there is no triable issue of material fact as to either cause of action and that it is entitled to judgment as a matter of law. Thus, the burden of production is shifted to Defendant to show the existence of a triable issue of material fact by presenting conflicting evidence to defeat summary judgment. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844.) Defendant

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has not submitted any evidence in opposition to the motion for summary judgment or any opposition at all and thus has failed to carry her burden of production of showing a triable issue of fact.

Accordingly, the Court GRANTS Plaintiff's Motion for Summary Judgment and enters its ORDER that the Motion for Summary Judgment is GRANTED against Defendant. Judgment shall be entered in favor of Plaintiff. Plaintiff is awarded its costs of suit pursuant to a memorandum of costs timely filed and served in accordance with Rules of Court, rule 3.1700.